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CCS (Conduct) Rules, 1964

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Central Civil Services (Conduct) Rules, 1964

Rule 1. Short Title, Commencement, and Application

- (1) These rules may be called the Central Civil Services (Conduct) Rules, 1964.
- (2) They shall come into force at once from 12th December 1964.
- (3) These rules shall apply to every person appointed to a civil service or post (including a civilian in Defence Service) in connection with the affairs of the Union.

Exceptions

These rules shall not apply to:

- (a) A Railway Government Servant.
- (b) A member of an All India Service.
- (c) A holder of any post in respect of which the President has, by a general or special order, directed that these rules shall not apply.

Special Exemptions for Non-Gazetted Staff

Provided further that Rules 4, 6, 7, 12, 14, sub-rule (3) of Rule 15, Rule 16, sub-rules (1), (2) and (3) of Rule 18, Rules 19, 20 and 21 shall not apply to any Government servant who draws a pay which does not exceed Rs. 500 per mensem and holds a non-gazetted post in any of the following establishments, owned or managed by the Government:

- (i) Ports, docks, wharves, or jetties.
- (ii) Defence installations except training establishments.
- (iii) Public works establishments, in so far as they relate to work-charged staff.
- (iv) Irrigation and electric power establishments.
- (v) Mines.

- (vi) Factories.
 - (vii) Field units of the Central Tractor Organization employing workmen governed by labour laws.
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Rule 2. Definitions

In these rules, unless the context otherwise requires:

- (a) "The Government" means the Central Government¹⁶.
 - (b) "Government servant" means any person appointed by Government to any civil service or post in connection with the affairs of the Union and includes a civilian in a Defence Service¹⁷.
 - (c) "Members of family" in relation to a Government servant includes:
 - The wife or husband of the Government servant, whether residing with the Government servant or not but does not include a wife or husband, as the case may be, separated from the Government servant by a decree or order of a competent court.
 - Son or daughter or step-son or step-daughter of the Government servant and wholly dependent on him, but does not include a child or step-child who is no longer in any way dependent on the Government servant or of whose custody the Government servant has been deprived by or under any law.
 - Any other person related, whether by blood or marriage, to the Government servant or to the Government servant's wife or husband, and wholly dependent on the Government servant.
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Rule 3. General

(1) Every Government servant shall at all times:

- (i) Maintain absolute integrity.
- (ii) Maintain devotion to duty.
- (iii) Do nothing which is unbecoming of a Government servant.

(2) **Supervisory Responsibilities:**

- (i) Every Government servant holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all Government servants for the time being under his control and authority.
- (ii) No Government servant shall, in the performance of his official duties, or in the exercise of powers conferred on him, act otherwise than in his best judgment except when he is acting under the direction of his official superior.
- (iii) The direction of the official superior shall ordinarily be in writing. Oral direction to subordinates shall be avoided, as far as possible. Where the issue of oral direction becomes unavoidable, the official superior shall confirm it in writing immediately thereafter.
- (iv) A Government servant who has received oral direction from his official superior shall seek confirmation of the same in writing as early as possible, whereupon it shall be the duty of the official superior to confirm the direction in writing.

Rule 3A. Promptness and Courtesy

No Government servant shall:

- (a) In the performance of his official duties, act in a discourteous manner.
- (b) In his official dealings with the public or otherwise adopt dilatory tactics or willfully cause delays in disposal of the work assigned to him.

Rule 3B. Observance of Government's Policies

Every Government servant shall, at all times:

- (i) Act in accordance with the Government's policies regarding age of marriage, preservation of environment, protection of wildlife, and cultural heritage.
- (ii) Observe the Government's policies regarding prevention of crime against women.

Rule 3C. Prohibition of Sexual Harassment of Working Women

(1) No Government servant shall indulge in any act of sexual harassment of any woman at any workplace.

(2) Every Government servant who is in charge of a workplace shall take appropriate steps to prevent sexual harassment to any woman at the workplace.

 **LEGISLATIVE NOTE:** The definition of "Sexual Harassment" includes physical contact and advances, a demand or request for sexual favours, making sexually coloured remarks, showing pornography, or any other unwelcome physical, verbal or non-verbal conduct of sexual nature, in accordance with the **Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013**.

Government Decisions on Conduct & Etiquette

1. **Communications:** Each communication received from a Member of Parliament (MP), a member of the Public, recognized association, or a public body will be acknowledged within **15 days**, followed by a reply within the next **15 days** of acknowledgement. In case of delay, an interim reply will be sent within **one month** from the date of receipt.
 2. **Lunch Break:** Observance of proper decorum by Government servants during lunch break is required. Lunch hour is **half an hour only**.
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3. Games:

- No Government servant should play cards on the lawn and such other places inside and outside office buildings.
 - The game of cards should be confined to recreation rooms or places approved for such purposes.
 - No indoor games should be played in office buildings after **7:00 PM** except on special occasions such as tournaments, etc.
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Rule 4. Employment of Near Relatives in Companies or Firms

(1) No Government servant shall use his position or influence directly or indirectly to secure employment for any member of his family in any company or firm.

(2) Group A Officers:

* (i) No Group A Officer shall, except with the previous sanction of the Government, permit his son, daughter, or other dependent, to accept employment in any company or firm with which he has official dealings or in any other company or firm having official dealings with the Government.

* (ii) A Government servant shall, as soon as he becomes aware of the acceptance by a member of his family of an employment in any company or firm, intimate such acceptance to the prescribed authority and shall also intimate whether he has or has had any official dealings with that company or firm.

(3) No Government servant shall in the discharge of his official duties deal with any matter or give or sanction any contract to any company or firm or any other person if any member of his family is employed in that company or firm.

Rule 5. Taking Part in Politics and Elections

(1) No Government servant shall be a member of, or be otherwise associated with, any political party or any organization which takes part in politics nor shall he take part in, subscribe in aid of, or assist in any other manner, any political movement or activity.

(2) It shall be the duty of every Government servant to endeavor to prevent any member of his family from taking part in, subscribing in aid of, or assisting in any other manner any movement or activity which is, or tends directly or indirectly to be, subversive of the Government as by law established.

(3) If any question arises whether a party is a political party or whether any organization takes part in politics, the decision of the Government thereon shall be final⁴⁶.

(4) No Government servant shall canvass or otherwise interfere with, or use his influence in connection with or take part in an election to any legislature or local authority⁴⁷.

Right to Vote:

Provided that a Government servant qualified to vote at such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted.

Rule 6. Joining of Associations by Government Servants

No Government servant shall join or continue to be a member of an association, the objects or activities of which are prejudicial to the interests of the sovereignty and integrity of India, or public order or morality.

Rule 7. Demonstrations and Strikes

No Government servant shall:

(i) Engage himself or participate in any demonstration which is prejudicial to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, or which involves contempt of court, defamation or incitement to an offence.

(ii) Resort to or in any way abet any form of strike or coercion or physical duress in connection with any matter pertaining to his service or the service of any other Government servant.

Definition of "Strike":

"Strike" includes:

- (1) Mass abstention from work without permission.
- (2) Refusal to work overtime where such overtime work is necessary in the public interest.
- (3) Resort to practices or conduct which is likely to result in or results in the cessation or substantial retardation of work in any organization. Such practices include 'go slow', 'sit-down', 'pen down', 'stay-in', 'token', sympathetic, or any other similar strike.
- (4) Absence from work for participation in a *Bandh* or any similar movements.

Rule 8. Connection with Press or Other Media

(1) No Government servant shall, except with the previous sanction of the Government, own wholly or in part, or conduct or participate in the editing or management of, any newspaper or other periodical publication or electronic media.

(2) Nothing in sub-rule (1) shall apply in case a Government servant in the bona fide discharge of his official duties publishes a book or participates in a public media.

(3) A Government servant publishing a book or participating in a public media shall at all times make it clear that the views expressed by him are his own and not that of the Government.

Permissions & Time Limits:

If no communication is received from the competent authority within the following time limits, permission may be assumed to have been granted⁶⁰:

Rule No.	Provision relating to	Time period for grant of permission
8(1)	Connection with Radio or Press	30 days
13(4)	Gifts	30 days
18(2) & 18(3)	Transaction in movable and immovable property	30 days
18-A	Transactions in immovable property outside India or with foreigners	60 days

Rule 9. Criticism of Government

No Government servant shall, in any radio broadcast, telecast through any electronic media or in any document published in his own name or anonymously, pseudonymously or in the name of any other person or in any communication to the press or in any public utterance, make any statement of fact or opinion:

- (i) Which has the effect of an adverse criticism of any current or recent policy or action of the Central Government or a State Government.
- (ii) Which is capable of embarrassing the relations between the Central Government and the Government of any State.

- (iii) Which is capable of embarrassing the relations between the Central Government and the Government of any foreign State.

Exception:

Provided that nothing in this rule shall apply to any statements made or views expressed by a Government servant in his official capacity or in the due performance of the duties assigned to him.

Rule 10. Evidence Before Committee or Any Other Authority

(1) No Government servant shall, except with the previous sanction of the Government, give evidence in connection with any enquiry conducted by any person, committee or authority.

(2) Where any sanction has been accorded under sub-rule (1), no Government servant giving such evidence shall criticize the policy or any action of the Central Government or of a State Government.

(3) Exceptions: Nothing in this rule shall apply to:

* (a) Evidence given at an enquiry before an authority appointed by the Government, Parliament or a State Legislature.

* (b) Evidence given in any judicial enquiry.

* (c) Evidence given at any departmental enquiry ordered by authorities subordinate to the Government.

Rule 11. Communication of Official Information

Every Government servant shall, in performance of his duties in good faith, communicate information to a person in accordance with the **Right to Information Act, 2005** and the rules made thereunder.

Restriction:

Provided that no Government servant shall, except in accordance with any general or special order of the Government or in performance in good faith of the duties assigned to him, communicate, directly or indirectly, any official document or any part thereof or classified information to any Government servant or any other person to whom he is not authorized to communicate such document or classified information⁷².

Rule 12. Subscriptions

No Government servant shall, except with the previous sanction of the Government or of the prescribed authority, ask for or accept contributions to, or otherwise associate himself with the raising of, any funds or other collections in cash or in kind in pursuance of any object whatsoever.

Exceptions:

1. **Union Subscriptions:** A member of a service union can freely collect subscriptions among themselves for welfare activities of the union.
2. **Flag Day:** Flag Day collections for the benefits of ex-servicemen are exempted.

Rule 13. Gifts

(1) Save as provided in these rules, no Government servant shall accept, or permit any member of his family or any other person acting on his behalf to accept, any gift.

Explanation: The expression "gift" shall include free transport, boarding, lodging or other service or any other pecuniary advantage when provided by any person other than a near relative or personal friend having no official dealings with the Government servant.

Note:

- A casual meal, lift or other social hospitality shall not be deemed to be a gift.
- A Government servant shall avoid accepting lavish hospitality or frequent hospitality from any individual, industrial or commercial firms, organizations, etc., having official dealings with him.

(2) On occasions such as weddings, anniversaries, funerals or religious functions, when the making of a gift is in conformity with the prevailing religious and social practice, a Government servant may accept gifts from his near relatives or from his personal friends having no official dealings with him, but shall make a report to the Government if the value of such gift exceeds:

- **Group 'A' and Group 'B' Posts: Rs. 25,000**
- **Group 'C' Posts: Rs. 15,000**

 **LEGISLATIVE NOTE:** Limits substituted vide **G.S.R. 531(E) dated 29.07.2019**. The previous limits were Rs. 25,000 (Group A), Rs. 15,000 (Group B), and Rs. 7,500 (Group C). The 2019 amendment unified Group A and B limits and increased the Group C limit.

(3) In any other case, a Government servant shall not accept any gift without sanction of the Government if the value thereof exceeds:

- **Group 'A' and Group 'B' Posts: Rs. 5,000**
- **Group 'C' Posts: Rs. 2,000**

(4) Foreign Dignitaries:

A Government servant, being a member of the Indian delegation or otherwise, may receive and retain gifts from foreign dignitaries in accordance with the provisions of the

Foreign Contribution (Acceptance or Retention of Gifts or Presentation) Rules, 2012, as amended from time to time.

(5) Foreign Firms:

A Government servant shall not accept any gifts from any foreign firm which is either contracting with the Government of India or is one with which the Government servant had, has or is likely to have official dealings.

Rule 13-A. Dowry

No Government servant shall:

- (i) Give or take or abet the giving or taking of dowry; or
- (ii) Demand directly or indirectly, from the parent or guardian of a bride or bridegroom, as the case may be, any dowry.

Definition: For the purposes of this rule, 'dowry' has the same meaning as in the **Dowry Prohibition Act, 1961 (28 of 1961)**.

Rule 14. Public Demonstrations in Honour of Government Servants

No Government servant shall, except with the previous sanction of the Government, receive any complimentary or valedictory address or accept any testimonial or attend any meeting or entertainment held in his honour; or in the honour of any other Government servant.

Exceptions:

Nothing in this rule shall apply to:

- (i) A farewell entertainment of a substantially private and informal character held in honour of a Government servant or any other Government servant on the occasion of his retirement or transfer or any person who has recently quit the service of any Government; or
- (ii) The acceptance of simple and inexpensive entertainments arranged by public bodies or institutions.
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Rule 15. Private Trade or Employment

- (1) No Government servant shall, except with the previous sanction of the Government:
- (a) Engage directly or indirectly in any trade or business, or
 - (b) Negotiate for, or undertake, any other employment, or
 - (c) Hold an elective office, or canvass for a candidate or candidates for an elective office, in any body, whether incorporated or not, or
 - (d) Canvass in support of any business of insurance agency, commission agency, etc., owned or managed by any member of his family, or
 - (e) Take part except in the discharge of his official duties, in the registration, promotion or management of any bank or other company registered or required to be registered, under the Companies Act, 2013.

Exception:

Provided that no previous permission shall be necessary in case where the Government servant participates in a program produced or commissioned by Government media in his official capacity.

- (2) A Government servant may, without the previous sanction of the Government:
- (a) Undertake honorary work of a social or charitable nature, or
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- (b) Undertake occasional work of a literary, artistic or scientific character, or
- (c) Participate in sports activities as an amateur, or
- (d) Take part in the registration, promotion or management (not involving the holding of an elective office) of a literary, scientific or charitable society or of a club or similar organization, the aims or objects of which relate to promotion of sports, cultural or recreational activities, registered under the Societies Registration Act, 1860.
- (e) Take part in the registration, promotion or management (not involving the holding of elective office) of a co-operative society substantially for the benefit of Government servants, registered under the Co-operative Societies Act, 1912.

Conditions:

- He shall discontinue taking part in such activities, if so directed by the Government.
- His official duties shall not suffer thereby and he shall, within a period of **one month** of his taking part in such activity, report to the Government giving details of the nature of his participation.

(3) Every Government servant shall report to the Government if any member of his family is engaged in a trade or business or owns or manages an insurance agency or commission agency.

(4) **Fees:** Unless otherwise provided by general or special orders of the Government, no Government servant may accept any fee for any work done by him for any private or public body or any private person without the sanction of the prescribed authority.

Government Decisions:

- **Examinership:** Acceptance of part-time Examinership of examination papers set by recognized Universities may be permitted once or twice for a few days in a year.

- **Lectureship:** Part-time lectureship amounts to regular remunerative occupation attracting the need for sanction.
 - **Part-time Jobs:** After office hours, part-time jobs are generally **not allowed**.
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Rule 15-A. Sub-letting and Vacation of Government Accommodation

(1) No Government servant shall sub-let, lease or otherwise allow occupation by any other person of Government accommodation which has been allotted to him.

(2) A Government servant shall, after the cancellation of his allotment of Government accommodation, vacate the same within the time-limit prescribed by the allotting authority.

Note: Subletting of Government accommodation is a grave misconduct. Disciplinary proceedings may be initiated under **Rule 14 of CCS (CCA) Rules, 1965**.

Rule 16. Investment, Lending, and Borrowing

(1) No Government servant shall speculate in any stock, share or other investment.

Explanation: Frequent purchase or sale or both, of shares, securities or other investments shall be deemed to be speculation within the meaning of this sub-rule.

Exception: Nothing in this sub-rule shall apply to occasional investments made through stockbrokers or other persons duly authorized and licensed or who have obtained a certificate of registration under the relevant law.

(2) No Government servant shall make, or permit any member of his family or any person acting on his behalf to make, any investment which is likely to embarrass or influence him in the discharge of his official duties.

(3) If any question arises whether any transaction is of the nature referred to in sub-rule (1) or (2), the decision of the Government thereon shall be final.

(4) Lending and Borrowing:

No Government servant shall, save in the ordinary course of business with a bank or a public limited company, either himself or through any member of his family or any other person acting on his behalf:

- (a) Lend or borrow or deposit money, as a principal or an agent to, or from or with, any person or firm or private limited company within the local limits of his authority or with whom he is likely to have official dealings or otherwise place himself under any pecuniary obligation to such person or firm or private limited company.
- (b) Lend money to any person at interest or in a manner whereby return in money or in kind is charged or paid.

Exception: A Government servant may give to, or accept from a relative or a personal friend, a purely temporary loan of a small amount free of interest, or operate a credit account with a bona fide tradesman or make an advance of pay to his private employee.

Reporting Requirement:

Intimation should be sent to the prescribed authority if the total transactions in shares, securities, debentures, mutual funds, etc., exceed six months' basic pay of the Government servant during the calendar year (to be submitted by 31st January of the subsequent year).

Rule 17. Insolvency and Habitual Indebtedness

A Government servant shall so manage his private affairs as to avoid habitual indebtedness or insolvency. A Government servant against whom any legal proceeding

is instituted for the recovery of any debt due from him or for adjudging him as an insolvent, shall forthwith report the full facts of the legal proceedings to the Government.

Rule 18. Movable, Immovable, and Valuable Property

(1) Return of Assets (First Appointment):

Every Government servant shall on his first appointment to any service or post submit a return of his assets and liabilities, in such form as may be prescribed by the Government, giving full particulars regarding:

- (a) Immovable property inherited, owned, acquired, or held on lease or mortgage by him (either in his own name or in the name of any family member or other person).
- (b) Shares, debentures, and cash including bank deposits.
- (c) Other movable property.
- (d) Debts and other liabilities.

(2) Immovable Property:

No Government servant shall, except with the previous knowledge of the prescribed authority, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift or otherwise either in his own name or in the name of any member of his family.

Sanction Requirement:

Provided that the previous sanction of the prescribed authority shall be obtained by the Government servant if any such transaction is with a person having official dealings with him.

(3) Movable Property:

Where a Government servant enters into a transaction in respect of movable property either in his own name or in the name of the member of his family, he shall, within one month from the date of such transaction, report the same to the prescribed authority, if the value of such property exceeds two months' basic pay of the Government servant.

 **LEGISLATIVE NOTE:** The monetary limit for reporting movable property transactions was amended to "two months' basic pay" (replacing fixed amounts like Rs. 20,000/Rs. 15,000) vide **G.S.R. 531(E) dated 29.07.2019**.

(4) Power to Requisition Data:

The Government or the prescribed authority may, at any time, by general or special order, require a Government servant to furnish a full and complete statement of such movable or immovable property held or acquired by him or on his behalf or by any member of his family.

Definitions for Rule 18:

- **"Movable Property" includes:**
 - Jewellery, insurance policies the annual premia of which exceeds **two months' basic pay**.
 - Shares, securities, and debentures.
 - All loans, whether secured or not, advanced or taken by the Government servant.
 - Motor cars, motorcycles, horses, or any other means of conveyance.
 - Refrigerators, radios, radiograms, and television sets.
- **"Prescribed Authority" means:**
 - (a) The Government: For any Group 'A' post.
 - (b) Head of Department: For any Group 'B' post.

- (c) Head of Office: For any Group 'C' post.

Rule 18-A. Restrictions in Relation to Acquisition and Disposal of Immovable Property Outside India and Transactions with Foreigners

No Government servant shall, except with the **previous sanction** of the prescribed authority:

(a) Acquire by purchase or dispose of, by sale, mortgage, gift or otherwise, either in his own name or in the name of any member of his family, any immovable property situated outside India¹.

(b) Enter into any transaction with any foreigner, foreign Government, foreign organization or concern, for the acquisition by purchase or disposal of, by sale, mortgage, lease, gift or otherwise, either in his own name or in the name of any member of his family, any immovable property².

Time Limit: Permission may be assumed if no communication is received from the competent authority within **60 days**.

Rule 19. Vindication of Acts and Character of Government Servant

(1) No Government servant shall, except with the previous sanction of the Government, have recourse to any Court or to the Press for the vindication of any official act which has been the subject-matter of adverse criticism or an attack of a defamatory character.

Deemed Permission:

If no such sanction is received by the Government servant within a period of three months from the date of receipt of his request by the Government, he shall be free to assume that the permission as sought for has been granted to him⁵.

(2) Private Character:

Nothing in this rule shall be deemed to prohibit a Government servant from vindicating his private character or any act done by him in his private capacity. However, where any such action is taken, the Government servant shall submit a report to the prescribed authority regarding such action⁶.

Rule 20. Canvassing of Non-Official or Other Outside Influence

No Government servant shall bring or attempt to bring any political or other outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under the Government.

Rule 21. Restriction Regarding Marriage

(1) No Government servant shall enter into, or contract, a marriage with a person having a spouse living⁸.

(2) No Government servant, having a spouse living, shall enter into, or contract, a marriage with any person⁹.

Exceptions:

The Central Government may permit a Government servant to enter into, or contract, any such marriage if it is satisfied that:

(a) Such marriage is permissible under the personal law applicable to such Government servant and the other party to the marriage; and

(b) There are other grounds for so doing.

(3) Marriage to Foreign Nationals:

A Government servant who has married or marries a person other than of Indian Nationality shall forthwith intimate the fact to the Government.

Rule 22. Consumption of Intoxicating Drinks and Drugs

A Government servant shall:

- (a) Strictly abide by any law relating to intoxicating drinks or drugs in force in any area in which he may happen to be for the time being.
- (b) Not be under the influence of any intoxicating drink or drug during the course of his duty and shall also take due care that the performance of his duties at any time is not affected in any way by the influence of such drink or drug.
- (c) Refrain from consuming any intoxicating drink or drug in a public place¹⁴.
- (d) Not appear in a public place in a state of intoxication.
- (e) Not use any intoxicating drink or drug to excess.

Definition: For the purposes of this rule, 'public place' means any place or premises (including a conveyance) to which the public have, or are permitted to have, access, whether on payment or otherwise.

Rule 22-A. Prohibition Regarding Employment of Children

No Government servant shall employ to work any child below the age of 14 years.

 **LEGISLATIVE NOTE:** The **Child Labour (Prohibition and Regulation) Amendment Act, 2016** has significantly enhanced the penalties. Current provisions prescribe imprisonment of **6 months to 2 years** and/or a fine of **Rs. 20,000 to Rs. 50,000**. The definition of "child" remains a person who has not completed his 14th year.

Rules 23–25. Miscellaneous

Rule 23. Interpretation

If any question arises relating to the interpretation of these rules, it shall be referred to the Government whose decision thereon shall be final.

Rule 24. Delegation of Powers

The Government may, by general or special order, direct that any power exercisable by it or any head of department under these rules (except the powers under Rule 23 and this rule) shall, subject to such conditions, if any, as may be specified in the order, be exercisable also by such officer or authority as may be specified in the order.

Rule 25. Repeal and Saving

Any rules corresponding to these rules in force immediately before the commencement of these rules and applicable to the Government servants to whom these rules apply, are hereby repealed.

